

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO
Law and Motion Calendar
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday June 24, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM LINE 1 19-CLJ-01281	WAHR FINANCIAL GROUP, LLC VS. EDDY PALACIOS, ET AL
WAHR FINANCIAL GROUP, LLC, EDDY PALACIOS	JOHN P KENOSIAN

Claim of Exemption

TENTATIVE RULING:

Judgment debtor Eddy Palacios's claim of exemption is **GRANTED in part.**

On May 18, 2026, plaintiff Wahr Financial Group, LLC, filed a notice of opposition to Palacios's claim of exemption. Plaintiff argues that defendant's "monthly allocation of \$474.00 for phone/utilities; \$450.00 for medical/dental; \$493.00 for insurance; \$854.00 for transportation; and \$140.00 for entertainment costs seem excessive." Plaintiff further notes that Palacios "lists his spouse's income but has failed to add it to the total household income on section 2(e)." Plaintiff also questions why defendant's payroll deduction includes \$274.02 for health/dental/vision insurance and why Palacios has included \$450.00 for medical/dental payments in his monthly expenses.

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a).) Further, "[e]xcept as provided in subdivision (c), the portion of the judgment debtor's earnings that the judgment debtor proves is necessary for the support of the judgment debtor or the judgment debtor's family supported in whole or in part by the judgment debtor is exempt from levy under this chapter." (*Id.*, § 706.051, subd. (b).)

Palacios has three children. Accordingly, the expenses for phone and utilities, transportation and related expenses, do not seem excessive. Moreover, the medical/dental expenses are identified in Judicial Council Form EJ-165 as "payments" which is distinguishable from payroll deductions. The entertainment expense, however, does appear high.

Plaintiff is correct in that Palacios has not included his wife's take-home pay in "total monthly income" in line 2.e. Had he included that amount, his income would be sufficient to

cover his total monthly expenses before the Palacios' monthly consumer, student loan, and auto debts.

Accordingly, the court orders defendant's wages garnished in the amount of \$50/month.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

02:00 PM **LINE 2**

23-CIV-05709

MIKHAIL MAALLOULI VS. MATTHEW TODD FREDRICKSEN, ET AL

MIKHAIL MAALLOULI
MATTHEW TODD FREDRICKSEN

NATALIE KORDNAIJ

Motion to be Relieved as Counsel

TENTATIVE RULING:

The unopposed motion of Navid T. Nour to be relieved as counsel of record for plaintiff Mikhail Maalouli is **DENIED WITHOUT PREJUDICE**. The court's May 19, 2026 Order Shortening Time required counsel to serve the moving papers and the order on plaintiff by U.S. mail, return receipt requested, and by email and text message. To date, no proof of service has been filed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 3**

23-CLJ-04771

NAVY FEDERAL CREDIT UNION VS. SHANNON L WATKINS

NAVY FEDERAL CREDIT UNION
SHANNON L WATKINS

REA STELMACH
PRO SE

Motion to Set Aside Notice of Conditional Settlement

TENTATIVE RULING:

Plaintiff Navy Federal Credit Union's Motion to Vacate Notice of Conditional Settlement is **DENIED**.

Plaintiff filed a Notice of Conditional Settlement of Entire Case on October 25, 2024. Plaintiff has moved to set aside that Notice of Settlement. However, the motion is not supported by a declaration or any other evidence establishing the terms of the proposed settlement, defendant's failure to execute the written settlement agreement, or defendant's failure to perform payment obligations under the settlement agreement.

If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire case unless good cause is shown why the case should not be dismissed.

(Cal. Rules of Court, rule 3.1385 subd. (c)(2).)

Here, no good cause has been shown because plaintiff has not established by any admissible evidence that the case should not be dismissed. The motion is accordingly **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 4**

24-CIV-01161

JEFERSON ALEXIS ZECENA CANO, ET AL VS. GPI BUILDERS INC., ET AL

JEFERSON ALEXIS ZECENA CANO
GPI BUILDERS INC.

T P SKINNER
SARIT SIMHAYOFF-COEHN

Motion to Compel T-Mobile to Comply with Subpoena Duces Tecum

TENTATIVE RULING:

The unopposed Motion to Compel T-Mobile U.S., Inc.'s Compliance with Civil Subpoena *Duces Tecum* filed by plaintiff Jeferson Alexis Zecena Cano is **GRANTED**.

Plaintiff alleges that defendants misclassified him as an independent contractor when they employed him for three remodeling projects, and failed to reimburse him for expenses related thereto, resulting in numerous violations of employment law.

Plaintiff has moved for a court order compelling non-party T-Mobile U.S., Inc. to produce documents responsive to the civil subpoena *duces tecum* which he served upon it.

On November 21, 2025, plaintiff served a subpoena on T-Mobile seeking his own phone records. (Skinner Decl., ¶ 4, & exh. A). T-Mobile objected on January 5, 2026. (*Id.*, ¶ 5, & exh. B.)

T-Mobile refused to produce the documents, but indicated that it would comply with a subpoena that was accompanied by a valid court order. T-Mobile's objection appears primarily to be that since the target phone numbers are those of a subscriber in California, the subpoena is void unless accompanied by the account holder's consent. (Skinner Decl., exh. B at p. 9.) However, the subpoena did include such consent. (*Id.*, exh. A, at p. 7.) Nonetheless, the objection clearly states that, "COURT ORDER REQUIRED FOR RELEASE OF RECORDS." (*Id.*, exh. B, at p. 9.)

There is good cause to compel the production of the requested documents.

The documents are pertinent to showing the relationship between plaintiff and defendant Bennaim, if any. Bennaim denies knowing or communicating with plaintiff. (Skinner Decl., ¶ 3.)

Plaintiff also asserts that he owns the phone number and account with T-Mobile, and created the records. The court notes that the subpoena actually seeks the records of two phone numbers described as assigned to plaintiff, and includes but is not limited to calls to a specified third phone number (Skinner Decl., exh. A, at p. 6), which presumably belongs to defendant Bennaim.

Plaintiff further asserts that he has authorized the subpoena for his own records, which is shown. (Skinner Decl., exh. A, at p. 7.) Plaintiff argues that he would be burdened by undue delay, and that T-Mobile's failure to respond properly to his subpoena has deprived him of the right to pretrial discovery.

Neither T-Mobile nor any party has opposed the motion. Accordingly, the motion is **GRANTED**. The court orders T-Mobile to produce the requested records within thirty (30) days of notice of entry of the formal order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CIV-05845

YONGJUN ZHAO VS. YI WANG, ET AL

YONGJUN ZHAO
YI WANG

MARK J BLUER

Motion to Quash Service of Summons

TENTATIVE RULING:

Defendants Yi Wang and Cracking Pot, Inc. move to quash plaintiff Yongjun Zhao's service of summonses on each of them. Defendants previously filed a motion to set aside entries of default. At the hearing, the court declined to adopt the tentative ruling at that time and noted the defendants intended to file a motion to quash. (Minute Order, January 21, 2026.)

For reasons explained below, defendants' motion to set aside default is **GRANTED**. Defendants' motion to quash is also **GRANTED**.

On March 26, 2025, plaintiff requested entry of default against defendants. Upon receiving the request, the Clerk of the Court entered default against both defendants. (Request to Enter Default, filed March 26, 2025.)

Defendants argued (in both motions) that plaintiff's proofs of service fail to adequately establish that service was properly effected and that the documents were left with a person apparently in charge at defendants' place of business.

"[A] court gains jurisdiction over the defendant from the time the defendant is served with a copy of the summons and the complaint on which it's based, as required under the Code of Civil Procedure." (*Stancil v. Superior Ct.*, (2021) 11 Cal.5th 381, 392 (*Stancil*); Code Civ. Proc. §§ 410.50, 412.20.) "On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts." (*Brown v. Garcia* (2017) 17 Cal.App.5th 1198, 1203, citations omitted.)

Service of process on an individual may be effected in various ways. A "summons may be served by leaving a copy of the summons and complaint at the person's . . . usual place of business, . . . in the presence of . . . a person apparently in charge of their office, place of business, . . ." followed by mailing a copy of the papers to the place where substituted service was made. (Code Civ. Proc., § 415.20, subd. (b).) Alternatively, where the plaintiff has been unable to effect personal or substituted service by reasonable diligence, upon application to and approval by the court, service may be made by email or publication. (*Id.*, §§ 413.30, 415.50.)

A corporation may be served through “the person designated as agent for service of process” or “the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.” (Code Civ. Proc., § 416.10, subd. (a), (b).) If one of those people is unavailable, a corporation may be served by leaving the papers with a person “apparently in charge.” (*Id.*, § 415.20, subd. (a).)

“Section 417.10, subdivision (a) provides, in relevant part, that where substituted service was effectuated under section 415.20, the affidavit attesting to such service must state ‘the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered, and, if appropriate, his or her title or the capacity in which he or she is served.’” (*Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1057 (*Chinese Theater*), citing Code Civ. Proc., § 417.10, subd. (a); see also *id.* at pp. 1057-1058, citing Jud. Council of Cal., com., foll. § 417.10.)

Review of the four proofs of service of summons and two attached declarations of diligence filed by plaintiff indicates that service of process was defective. The substituted service asserted was not supported by facts indicating that service made upon a person apparently in charge of the business, but instead merely stated that service was made to “Jane Doe, Waitress” (proofs of service of summons, filed on December 24 and 31, 2024) or a “John Doe, employee/person in charge.” (Two proofs of service of summons, filed on February 3, 2025; Code Civ. Proc., § 415.20.) Here, although the declarations submitted by the process server refer to John Doe as “person in charge,” that does not demonstrate that substituted service was properly effected. (*Chinese Theater, supra*, 115 Cal.App.5th at p. 1059.) Rather, as the Court of Appeal has explained, “[w]e conclude the phrase “apparently in charge” cannot reasonably be read to validate service on any employee found at a business location.” (*Ibid.*) Instead, “[t]here must be some indication warranting a finding the employee is someone ‘apparently in charge’ and reasonably likely to deliver the service documents to the intended recipient and the service declarations should reflect some basic facts upon which the finding was made.” (*Ibid.*)

Accordingly, defendants have established that plaintiff did not satisfy the requirements for service of process.

A defendant may file a motion to quash service of summons “on or before the last day of his or her time to plead or within any further time that the court may for good cause allow.” (Code Civ. Proc., ¶ 418.10, subd. (a).) Defendants’ motion to quash was not timely made within their time to plead and defendants have not made any argument in their briefing as to good cause.

Code of Civil Procedure, section 437, subdivision (d) is proper basis for setting aside a default for lack of service of process. The statute provides:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or

order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

(Code Civ. Proc., § 473, subd. (d).)

Because service appears void on the face of the proofs of service, the court has the power to vacate the default at any time upon a reasonable showing. (*See, e.g., California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 215.) Motions to set aside a default made on the grounds that service was void are not subject to the time limitations of Section 473. (*Id.*, at p. 225 [holding that “a section 473(d) motion to vacate judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation”]; *Batte v. Bandy* (1958) 165 Cal.App.2d 527, 537-38 [motions based on the ground that service and default are void on their face are not within the purview of the time limitations of section 473].)

While defendants did not cite Section 473, subdivision (d) in the briefing on their motion to set aside default, they argue that service of process was not properly effected and that the defaults should be set aside on that basis. Because service appears void, the motion to set aside default was timely under Section 473, subdivision (d).

Defendants have retained counsel. Their counsel is directed to advise plaintiff’s counsel whether defendants’ counsel will accept service on their behalf.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 6**

24-CIV-08329

JONATHAN YUN VS. TOYOTA MOTOR SALES, U.S.A., INC.

JONATHAN YUN
TOYOTA MOTOR SALES, U.S.A., INC.

ELLIOT CONN
SEAN D BEATTY

Defense Motion to Transfer/Change Venue to Los Angeles County Superior Court

TENTATIVE RULING:

For the reasons stated below, defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Transfer Venue to Los Angeles County Superior Court, filed on February 23, 2026, is **DENIED**.

A. Background

Plaintiff's Complaint, filed on December 30, 2024, asserts causes of action against defendant for breach of warranty under the Song-Beverly Consumer Warranty Act; fraud; and violations of California's Consumer's Legal Remedies Act. On February 23, 2026, defendant filed this motion requesting a transfer of venue to Los Angeles County Superior Court. Defendant argues that the majority of witnesses reside in Los Angeles County, which would make it a more convenient forum. Plaintiff opposes the Motion.

B. Governing Law

The court designated in the original complaint is presumed to be a proper court for trial. (*Mission Imports Inc. v. Superior Court* (1982) 31 Cal.3d 921.) Therefore, the party moving to transfer venue has the burden of establishing the facts necessary to justify a change of venue. (*Buran Equip. Co. v. Superior Court* (1987) 190 Cal.App.3d 1662, 1666.) Code of Civil Procedure, section 397 states, in part that "The court may, on motion, change the place of trial in the following cases: * * * (c) When the convenience of witnesses and the ends of justice would be promoted by the change.

Code of Civil Procedure, section 395, subdivision (b) states, in part:

(b) Subject to the power of the court to transfer actions or proceedings as provided in this title, in an action arising from an offer or provision of goods, services, ... intended primarily for personal, family or household use, ... the superior court in the county where the buyer or lessee in fact signed the contract, *where the buyer or lessee resided at the time the contract was entered into, or where the buyer or lessee resides at the commencement of the action is the proper court for the trial of the action ...*

"It is well established that a defendant is entitled to have an action tried in the county of his or her residence unless the action falls within some exception to the general venue rule." (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 483.) "Section 395 codifies this rule and

provides that the trial of the action shall be in the county of the defendant's residence, '[e]xcept as otherwise provided by law.'" (*Ibid.*)

In *Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 838 the Court of Appeal explained that "whether the action is brought against a consumer defendant or by a consumer plaintiff, the venue provisions of section 395, subdivision (b) apply as long as the action arises from a consumer transaction specified in the statute." Accordingly, an "an action arising from an offer or provision of goods, services, loans or extensions of credit intended primarily for personal, family or household use" may be tried where the buyer lived at the time the contract was entered into or at the time the complaint was filed.

C. Application

Having reviewed the parties' briefing and the authority cited, defendant's request to transfer venue to Los Angeles County Superior Court is denied. When plaintiff filed this case he resided in San Mateo County, which made his choice of venue in San Mateo County permissible even though he could also have filed suit elsewhere.

Although Code of Civil Procedure, section 397 provides that the court may transfer venue to another county for the purpose of promoting "the convenience of witnesses and the ends of justice" (Code Civ. Proc., § 397, subd. (c)), in exercising its discretion, the court declines to do so here. Plaintiff filed this case approximately 18 months ago. Defendant answered the First Amended Complaint on May 2, 2025, over a year ago. Defendant's delay in seeking a change of venue weighs against granting the motion. Defendant knew from the outset that plaintiff purchased the vehicle in Los Angeles County, and had the vehicle serviced in Southern California. (See, e.g., FAC, ¶ 13 ["Plaintiff purchased the Vehicle from Keyes Lexus, an authorized TOYOTA dealership, in Van Nuys, California"]; ¶ 27 [plaintiff took the Vehicle to TOYOTA authorized warranty repair facility, South Bay Lexus, in Torrance, California, for warranty repair. South Bay Lexus performed a circuit inspection ..."].) Knowing these facts, defendant litigated this case for over a year before requesting a change of venue.

Further, although multiple witnesses appear to be based in the Los Angeles area, the depositions appear to have been notice via remote video, obviating their need to travel. And, assuming the case proceeds to trial, it is unclear from defendant's proffered evidence which witnesses would likely testify.

Viewing all of the factors discussed in the parties' briefing collectively, while defendant's argument regarding witness convenience (or inconvenience) has some merit, affording due respect for plaintiff's choice of venue, the court declines to transfer venue to the Los Angeles County Superior Court.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and

provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-04781

YAZMIN SANCHEZ VS. MERCEDES-BENZ USA, LLC

YAZMIN SANCHEZ
MERCEDES-BENZ USA, LLC

LUIS SERRANO
MEHGAN GALLAGHER

Motion for Judgment on the Pleadings

TENTATIVE RULING:

Defendant Autobahn, Inc.’s Motion for Judgment on the Pleadings is **GRANTED**.

As a preliminary matter, defendant Autobahn, Inc. has not complied with subdivision (a)(3) of Code of Civil Procedure section 439. The statute requires a party moving for judgment on the pleadings to be accompanied by a declaration stating either that the parties met and conferred as required or that the opposing party failed to respond or otherwise meet and confer. (*Ibid.*) The declaration submitted with the motion merely states that Autobahn’s counsel “attempted to communicate” with plaintiff Yasmin Sanchez’s counsel. (Feb. 13, 2026 Declaration of Meghan Gallagher, ¶ 2.) This is insufficient. Autobahn and its counsel are ordered to full comply with the Code of Civil Procedure in connection with all future pleadings or motions.

As for the merits, Autobahn moves for judgment on the pleadings as to the Complaint’s third cause of action, which is based on Autobahn’s purported negligence in storing, preparing, and repairing Sanchez’s vehicle. (June 25, 2025 Complaint, ¶¶ 49–51.) “The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917, quotation marks omitted.)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) As with a demurrer, a complaint’s “contentions, deductions, or conclusions of law” must be disregarded on a motion for judgment on the pleadings. (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 698.)

In an attempt to plead the third element — an injury proximately caused by the breach — the Complaint alleges, “[Autobahn’s] negligent breach of its duties owed to [Sanchez] was a proximate cause of [Sanchez’s] damages.” (Complaint, ¶ 52.) This is a pure legal conclusion: damages are merely the *money* to be paid in compensation for an injury, and there is no allegation of what actual injury — whether to Sanchez’s person or property — was caused by Autobahn’s purported negligence. (Black’s Law Dict. (12th ed. 2024) Damages; see Complaint, *passim*.)

Accordingly, the Complaint fails to state facts sufficient to constitute a cause of action for negligence, and the motion is granted. As this will be Sanchez's first opportunity to amend in response to a ruling identifying this defect, leave to amend is granted as a matter of fairness. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant Autobahn, Inc.'s counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 8**

25-CIV-05705

STEPHEN WEST VS. BRIANNA EYEN

STEPHEN WEST
BRIANNA EYEN

ELIJAH MARCUS UNDERWOOD
MISSY M CORNEJO

Motion to Determine Value and Send Buyout Notice

TENTATIVE RULING:

On April 22, 2026, the court set June 24, 2026 as the date of the hearing on plaintiff Stephen West's "Motion to Determine Value and Send Buy-Out Notice." Neither party has submitted any papers setting forth the appraiser's valuation of the property. Accordingly, the hearing is **VACATED**.

02:00 PM **LINE 9**

25-CIV-07053

SVETLANA YEPANECHNIKOVA VS. 200 ASSOCIATES, LLC, ET AL

SVETLANA YEPANECHNIKOVA
200 ASSOCIATES, LLC

JOHN F. DOMINGUE

Motion to Quash Service of Summons

TENTATIVE RULING:

Specially appearing defendant Alexandra Degai's motion to quash service of summons of plaintiff Svetlana Yepanechnikova's complaint filed September 11, 2025, is **DENIED**.

Degai shall file an answer no later than ten (10) court days following notice of entry of this order.

A. Background

The underlying action involves a loan amongst friends to assist defendants in the purchase and improvement of an investment property. Plaintiff's complaint alleges plaintiff agreed to loan defendants \$690,000 in exchange for a deed of trust so she would have an interest in the property to secure her loan, but defendants later refused to providing or recording the deed of trust, and also failed to pay back the loan.

Defendant Alexandra Degai has moved to quash service, arguing that plaintiff failed to properly serve her in compliance with California law, and that as a result, the court lacks personal jurisdiction over Degai. Plaintiff opposes, contending that several efforts at personal service were made at Degai's personal residence, which she shared with her husband and co-defendant, however both parties contrived to evade service upon Degai. The registered process server ultimately served Degai's husband and mailed a copy of the summons, complaint and related papers. (Declaration of Krista Clawson iso Plaintiff's Opp., filed June 10, 2026, ¶ 2-4, exhs. A-C.)

B. Legal Standard

A motion to quash under Code of Civil Procedure, section 418.10, subdivision (a) may be made in a special appearance for the purpose of contesting personal jurisdiction due to improper service. (Code Civ. Proc., § 418.10, subd. (a)(1); *Stancil v. Superior Ct.*, (2021) 11 Cal.5th 381, 393 (*Stancil*).)

"[A] court gains jurisdiction over the defendant from the time the defendant is served with a copy of the summons and the complaint on which it's based, as required under the Code of Civil Procedure. (Code Civ. Proc. §§ 410.50, 412.20; *Stancil, supra*, 11 Cal.5th at p. 392.) "On a motion to quash service of summons, the plaintiff bears the burden of proving by a

preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts.” (*Brown v. Garcia* (2017) 17 Cal.App.5th 1198, 1203, citations omitted.)

C. Discussion

Specially appearing defendant Alexandra Degai contends that the substituted service upon her — which was effected by leaving the summons and complaint, and related papers with her husband at their personal residence — was improper because she did not receive a written paper summons by U.S. Mail. Plaintiff’s opposition briefing, however, shows that a paper copy was mailed. First, the opposition brief asserts, and the sworn proof of service attests, that plaintiff’s registered process server made no less than four attempts at personal service before a copy was left with a competent household member, that is Degai’s husband and co-defendant, who was informed of the contents. Moreover, the declaration signed by the registered process server states that she “plac[ed] a true copy of each document in the United States mail, in a sealed envelope by First Class mail with postage prepaid” and addressed to Alexandra Degai at her home address. (Clawson Decl., ¶¶ 2-6, exhs. A-C.) The registered process servers’ sworn proofs of service (*id.*, exh. C), filed with this court raise a rebuttable presumption of valid service that defendant’s bare denial of receipt cannot overcome.

The authority Degai relies upon for her proposition regarding mailing, *Evartt v. Superior Court* (1979) 89 Cal.App.3d 795, 800 (*Evartt*), is distinguishable. In that case, the plaintiff had failed to effect service on defendant notwithstanding that “it was inferable” that she knew his address. Plaintiff argued that time to serve was tolled for a few weeks while defendant was outside of California. The Court of Appeal expressly stated it did “not discuss or resolve petitioner’s further contention that because service upon him is not deemed complete until 10 days after mailing of the summons and complaint (see § 415.20, subd. (b), fn. 2, Ante) the 3-year limitation in section 581a expired before that time and he is in any event entitled to a dismissal.” (*Id.*, at pp. 802-803.) Rather, *Evartt* reversed the trial court’s denial of the motion to quash on the grounds that plaintiff did not meet her burden to show reasonable diligence to effect personal service. “Here, real party clearly failed to carry her burden, having not presented one scintilla of information or explanation for her failure to attempt personal service for 2 years and 363 days, during all of which time except for very short periods defendant was available for service at his residence close by. . . . Real party’s 11th-hour token efforts cannot be considered independent of her unexplained neglect during the 2 years and 363 days as it would be incongruous to hold that neglectful conduct can constitute an excuse for not exercising reasonable diligence.” (*Id.*, at pp. 801-802.) Such is not the case here.

Accordingly, plaintiff has carried her burden to demonstrate that service was properly effected, and specially appearing defendant’s motion is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and

provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

26-UDL-00420

ASN TANFORAN CROSSING I LLC VS. NYA LAVEAU, ET AL

ASN TANFORAN CROSSING I LLC
NYA LAVEAU

LAURIE LI
PRO SE

Motion for Leave to Amend Complaint

TENTATIVE RULING:

Plaintiff's unopposed motion for leave to amend the complaint to correct the name of the property owner is **GRANTED**. Plaintiff shall file the proposed first amended complaint (FAC) within five (5) days of notice of entry of this order and must personally serve the FAC on defendant at that time, unless she has agreed to email service. Defendant shall have ten (10) court days to respond to the FAC, excluding Saturdays, Sundays, and holidays. (Code Civ. Proc., § 1167, subd. (a).)

Plaintiff seeks to amend the complaint, which names ASN Tanforan Crossing I, LLC as the plaintiff to comport with the lease agreement, which identifies the property owner as ASN Tanforan Crossing II, LLC. Plaintiff's counsel's declaration states that he discovered the error on May 19, 2026. The motion to amend the complaint was filed on May 27, 2026. Notice of reassignment, and notice of the pretrial conference was sent to the parties on May 15, 2026, and the notice of trial was sent to the parties on June 10, 2026.

Defendant has not responded to the motion. She did, however, answer the complaint and did not raise the issue of the mis-named plaintiff. Because this is an unlawful detainer proceeding, she may appear at the hearing, and if she opposes the motion, may do so orally. If defendant opposes the amendment, she must state facts demonstrating that she would be prejudiced by the amendment.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.



POSTED: 11:00 AM